

	)	
Roger Waterloo <i>d/b/a</i> EcoBamboo,	)	
<i>Complainant,</i>	)	
	)	
v.	)	
	)	
	)	DOCKET NO. 25-26
	)	
Marine Shipp Fast Ltd. d/b/a Ship4WD	)	
<i>Respondent.</i>	)	
	)	

Respondent Marine Shipp Fast Ltd. d/b/a Ship4WD¹ (“Ship4WD” or “Respondent”) submits this memorandum in reply to Complainant Roger Waterloo d/b/a EcoBamboo’s (“EcoBamboo” or “Complainant”) September 26, 2025 Motion for Default Determination and in support of its Cross-Motion to Dismiss (“Motion”).

Complainant argues for a default determination on the grounds that the complaint was served on August 30, 2025 and that Respondent's answer was due September 24, 2025. Complainant's argument fails for two reasons.

¹ The complaint confuses the legal entity that acts as an ocean transportation intermediary (Marine Shipp Fast Ltd.) with its trade name, Ship4WD. There is no legal entity named Ship4WD, Inc. Although this confusion is a sufficient basis to move to dismiss the complaint, in light of the leniency typically afforded pro se complainants we simply identify the correct respondent here.

foreign countries. As relevant to the instant proceeding, the Hague Convention dictates that emailing a party domiciled in Israel is not a proper way to effectuate service. *See* Israel-Central Authority & practical information, <https://www.hcch.net/en/states/authorities/details3/?aid=260> (Last visited September 28, 2025). Thus, even if the complaint was emailed to Respondent on August 30, 2025, that service was not legally valid and did not start the clock on Respondent's time to answer.

Second, the Federal Maritime Commission's (the "Commission") regulations establish that a party has 25 days from the date of service to file an answer or other responsive pleading. *See* 46 C.F.R. § 502.62(b). The Commission generally sets forth the date of service of a complaint on both the face of the official copy of complaint itself, and in the Initial Order. In this case, the Commission has determined that the date of service was September 9, 2025. *See* Complaint at 1; Initial Order at 1. Accordingly, Respondent is not in default and Complainant's motion should be denied.

II. The Complaint Should be Dismissed for Failure to State a Claim

Because the complaint fails to allege facts sufficient to sustain a necessary element of a claim under section 41102(c) of the Shipping Act, the complaint should be dismissed for failure to state a claim.

The Commission's regulations do not explicitly provide for motions to dismiss, but Commission Rule 12 states that the Federal Rules of Civil Procedure will be followed in instances that are not covered by the Commission's regulations, if consistent with sound administrative practice. 46 C.F.R. § 502.12. The "Commission looks to Federal Rule of Civil Procedure 12(b)(1) when considering dismissals based on lack of subject matter jurisdiction, and to Rule 12(b)(6) when considering dismissals based on failure to state a claim." *MAVL Capital v. Marine Transport Logistics*, 2 F.M.C. 2d 198, 2020 WL 13512925 at *4 (FMC 2020). Furthermore, "under Fed. R.

Civ. P. 12(b)(6), the facts alleged are taken as true and all reasonable inferences are drawn in the complainant's favor." *Id.* at *5 (citing *Maier Terminals, LLC v. The Port Authority of New York and New Jersey*, 34 S.R.R. 35, 54, 2015 WL 9426189 (FMC 2015)).

To survive motions to dismiss for failure to state a claim under Rule 12(b)(6), a complaint must contain sufficient factual matter, accepted as true, to "state a claim to relief that is plausible on its face." *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 570 (2007). "A claim has facial plausibility when the pleaded factual content allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." *Ashcroft v. Iqbal*, 556 U.S. 662, 663 (2009) (citing *Twombly*, 550 U.S. at 556). "A pleading that offers 'labels and conclusions' or 'a formulaic recitation of the elements of a cause of action will not do.'" *Iqbal*, 556 U.S. at 678 (quoting *Twombly*, 550 U.S. at 555).

Section 41102(c) of the Shipping Act states that:

A common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.

The Commission's interpretive rule on unjust and unreasonable practices, codified at 46 C.F.R. § 545.4, provides that in order to establish a successful claim under § 41102(c), a claimant must prove that the acts or omissions of the regulated entity occurred on a normal, customary, and continuous basis. 46 C.F.R. § 545.4(b). In applying 46 C.F.R. § 545.4, the Commission has stated that "§ 41102(c) is not violated by a single act or omission (even if unjust or unreasonable)," and that "Commission precedent has made clear that a single shipment or isolated act or omission does not show a pattern or practice." *See Crocus Investments, LLC v. Marine Transport Logistics, Inc.*, 2021 WL 3732849 at * 4, 8 (August 18, 2021); *Samsung Elec. Am., Inc. v. COSCO Shipping Lines Co, Ltd.*, Dkt. 24-16, 2025 WL 1126006, at *7 (ALJ Apr. 11, 2025). An FMC ALJ has also held that an allegation of a one-time occurrence does not

satisfy the normal, customary, and continuous element of Section 41102(c) unless the Respondents have failed “for several years to take ‘corrective action’” to remedy an issue. *See Francis Sheka Kanu v. Ejike Dickson*, Dkt. 25-05, 2025 WL 2634210 at *6 (ALJ Sept. 4, 2025).

Here, the Complaint alleges that Ship4WD agreed to provide fumigation of Complainant’s shipment of bamboo sheets and bamboo poles in Indonesia and that the fumigation did not meet the standards required by USDA/AHPIS. Complainant also alleges that the method and location of the fumigation treatment were misstated on the fumigation certificate. Complainant does not allege that Respondent’s conduct was normal, customary and continuous.

Moreover, in analyzing the complaint under the 12(b)(6) standard, which assumes that the facts alleged are taken as true and all reasonable inferences are drawn in the complainant’s favor, Complainant provides no facts that might support a contention that Ship4WD’s actions were normal, customary, and continuous.² No inferences can be drawn from the facts provided to show that Ship4WD’s alleged conduct was more than a single occurrence relating to a single shipment of bamboo. In the absence of such facts, the complaint fails to plausibly plead a necessary element of a § 41102(c) violation, and therefore fails to state a claim upon which relief can be granted.

III. Conclusion

Complainant’s motion for default determination should be denied and, for the reasons stated above, Complainant has failed to state a claim upon which relief can be granted. Accordingly, Respondent’s motion to dismiss should be granted and this proceeding dismissed with prejudice.

² Although the facts alleged must be accepted as true for purposes of this cross-motion, Ship4WD does not concede that the facts are accurate and would dispute same if this proceeding moves forward to a decision on the merits.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Wayne R. Rohde". The signature is fluid and cursive, with the first name "Wayne" and last name "Rohde" clearly distinguishable.

Wayne R. Rohde
Rachel Schwartz
COZEN O'CONNOR
2001 M St., NW
Suite 500
Washington, DC 20036
(202) 463-2504

Dated: October 6, 2025

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 6th day of October, 2025, the foregoing Respondent's Motion to Dismiss was served via electronic mail on:

Roger Waterloo dba EcoBamboo, *Complainant*
rodebos@hotmail.com

A handwritten signature in black ink, appearing to read "Wayne R. Rohde". The signature is written in a cursive, flowing style with a large initial "W".

Wayne R. Rohde